

Court No. - 39

Case :- WRIT - C No. - 43745 of 2014

Petitioner :- Rajendra Kumar

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Devesh Pandey,P.B. Singh

Counsel for Respondent :- C.S.C.,Narendra Kr. Tiwari

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

It is contended by the learned counsel for the petitioner that the recovery for the alleged electricity dues has been issued without providing any opportunity to the petitioner to file objection against the provisional assessment.

Learned Counsel appearing for respondents No. 2 and 3 prays for and is allowed 10 days time to seek instructions in the matter.

Put up as fresh on 3.9.2014.

Order Date :- 22.8.2014

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Heard Sri Sarvodaya Singh, holding brief of Sri Devesh Pandey, learned counsel appearing for the petitioner, learned Standing Counsel for the respondents-State and Sri Narendra Kumar Tiwari, appearing for the respondent nos.2 & 3.

On 22.8.2014, learned counsel appearing for the respondent nos.2 and 3 was allowed ten days' time to seek instructions in the matter. Learned counsel has passed on instructions, which have been received by him from the respondents, which are taken on record.

Learned counsel for the respondent nos.2 and 3 on the basis of instruction received submits that the provisional assessment was sent to the petitioner by ordinary post. However, learned Counsel for the petitioner disputes this fact. From the instructions also, it does not transpire as to whether any provisional assessment was actually served upon the petitioner or the petitioner was afforded an opportunity to raise objections against it.

This Court in *Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)* from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs.4,75,778/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity. In the instructions also, it is not shown as to how the provisional assessment was served upon the petitioner.

In view of the fact that the instructions do not contain any positive reply with regard to method of service, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

The writ petition is allowed. The impugned citation notice dated 02.05.2014 and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in *Ashok Kumar* (supra).

Order Date :- 3.9.2014/Anil